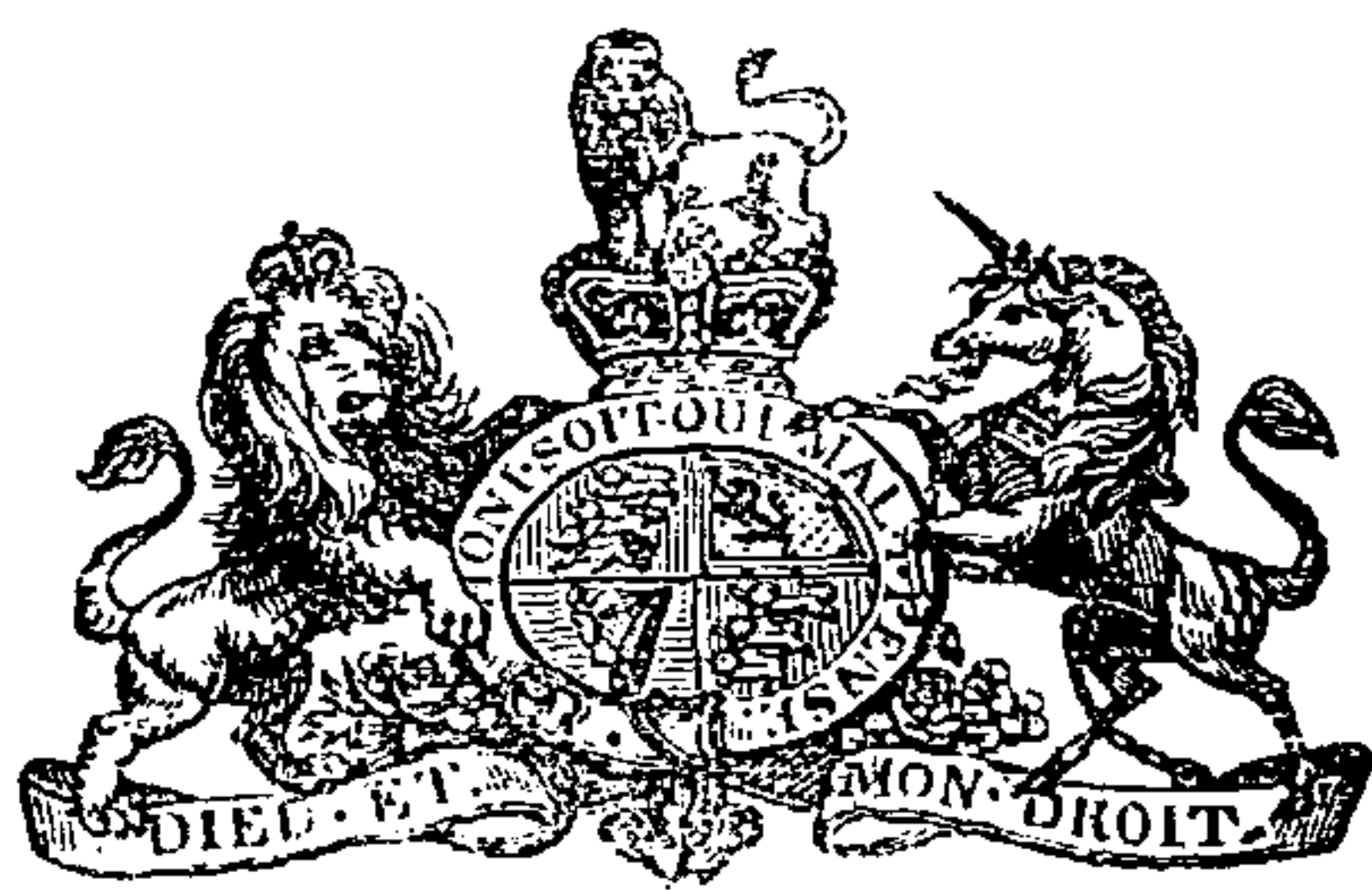




CHAPTER xiii.

An Act to dissolve the Omagh Gas Company and to A.D. 1901.
incorporate and confer powers on a new Company.

[2nd July 1901.]

WHEREAS under a deed of co-partnership dated the fourteenth day of August one thousand eight hundred and fifty certain persons therein named undertook the business of supplying gas within the township of Omagh in the county of Tyrone and in certain places in the neighbourhood thereof:

And whereas the said persons were on the first day of November one thousand eight hundred and fifty-six registered under the Joint Stock Companies Act 1856 as the Omagh Gas Company and the recited deed of co-partnership of the fourteenth day of August one thousand eight hundred and fifty was taken as the memorandum of association of the said Company:

And whereas the township of Omagh was on the first day of April one thousand nine hundred constituted an urban district under the provisions of the Local Government (Ireland) Act 1898:

And whereas the demand for gas in the said urban district has increased and is likely to increase and it would be of public and local advantage that the Company formed as aforesaid should be dissolved and the members thereof incorporated into a new Company and empowered as in this Act provided:

And whereas the share capital of the Company formed as aforesaid consisted in the year 1879 of one thousand shares of five pounds each:

And whereas the said Company has not since increased its nominal capital but has applied all the profits of the undertaking after payment of dividend at the rate of five pounds per centum per annum upon the said sum of five thousand pounds towards the construction and renewal of gasworks and other purposes to which capital is properly applicable:

A.D. 1901. And whereas it is estimated that the capital value of the undertaking including the improvements made out of revenue is not less than twelve thousand pounds :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Omagh Gas Act 1901.

Incorporation of Acts.

2. The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863) the Lands Clauses Acts (except the provisions thereof relating to the acquisition of lands otherwise than by agreement) the Gasworks Clauses Act 1847 (except sections 30 31 32 33 and 34) and the Gasworks Clauses Act 1871 are subject to the provisions of this Act incorporated with and form part of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Company incorporated by this Act ;

The expression "the existing company" means the company formed by registration under the Joint Stock Companies Act 1856 as herein-before recited ;

The expressions "the works" "the gasworks" and "the undertaking" mean respectively the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement and enlargement or extension thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

Limits of Act.

4. The limits of this Act shall be so much of the parishes of Drumragh and Cappagh (which parishes are partly in the urban

district and partly in the rural district of Omagh) as lie within a distance of two and one half miles of the centre of the present gasworks of the existing company.

A.D. 1901.

5. From and after the passing of this Act the existing company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes herein-after mentioned and shall be incorporated by the name of "The Omagh Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

Incorporation of Company.

6. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may provide produce sell dispose of and deal in gas coke tar and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

General purposes of Company.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the existing company or any person in trust for them or to which they were in anywise entitled and all mains pipes plant apparatus stock and effects which immediately before the passing of this Act were the property of the existing company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the existing company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the existing company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the existing company or any trustee on their behalf and may according to the provisions of this Act be held sued for and recovered and dealt with by the Company as they think fit.

Present property of existing company vested in Company.

8. Subject to the provisions of this Act the recited deed of co-partnership and memorandum of association of the existing

Deed of co-partnership and

A.D. 1901.

memoran-
dum of
existing
company to
be void
without
prejudice to
antecedent
breaches
thereof.

company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the existing company and the members thereof as such. But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of co-partnership or memorandum of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the existing company if this Act had not been passed.

Nothing to
affect
previous
rights and
liabilities.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the existing company or the members thereof as such shall be as valid as if the Company had not been re-incorporated and the said deed of co-partnership and memorandum of association had not been avoided by this Act and such re-incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not re-incorporated and the said deed of co-partnership and memorandum of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the existing company and the members thereof as such and the property of the existing company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Contracts
prior to
Act to be
binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the existing company or any trustees or persons acting on their behalf or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced

as fully and effectually as if instead of the existing company or the trustees or persons acting on behalf of the existing company the Company had been a party thereto. A.D. 1901.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the existing company or any member thereof in relation to the affairs of that company or to which that company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the existing company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the existing company and its members respectively. Actions &c. not to abate.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the existing company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the existing company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put to by reason of his having entered into such bond covenant contract or engagement. Trustees of existing company to be indemnified.

13. From and after the passing of this Act the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the existing company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the existing company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of existing company.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the existing company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

A.D. 1901.

As to
payment of
debts owing
before
passing of
Act.

15. All persons who immediately before the passing of this Act owed any money to the existing company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the existing company or for the payment of which the existing company were or but for this Act would have been liable shall with all interest (if any) due or accruing upon the same be paid by or be recoverable from the Company.

Certificates
&c. to
remain in
force.

16. Notwithstanding the avoidance of the said deed of co-partnership and memorandum of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed thereunder for and with respect to any shares in the existing company shall remain in full force and continue and be available in all respects as if the said deed and memorandum had not been avoided.

Books &c.
continued
evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue
until
removed.

18. All officers and servants of the existing company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments (together with the salaries and emoluments thereunto annexed) until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

19. The books kept by the existing company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Capital.

20. The capital of the Company shall be twenty-seven thousand pounds whereof twelve thousand pounds ordinary stock is in this Act called "the original capital" and fifteen thousand pounds is in this Act called "the additional capital" and the

original capital shall be divided among the shareholders in the existing company and the additional capital shall be raised in manner herein-after mentioned. A.D. 1901.

21.—(1) The original capital of twelve thousand pounds ordinary stock shall be divided among and vested in the several persons their successors executors administrators and assigns who immediately before the passing of this Act were the registered holders of shares in the existing company at a rate proportionate to the holding of each such person. Vesting of stock in present shareholders.

(2) The Company shall create and issue ordinary stock sufficient for the purposes aforesaid.

(3) All persons in whom any such stock shall be so vested shall stand possessed thereof upon the like trusts and subject to the like powers provisions declarations agreements charges liens and incumbrances upon or to which the shares in respect of which such stock was so vested were immediately before the passing of this Act so subject and every deed or other instrument and every will or testamentary disposition purporting to deal with the capital of the existing Company shall take effect with reference to the whole or a proportionate part as the case may be of the capital by this Act substituted therefor.

(4) The Company shall issue to every shareholder certificates stating the amount of original capital held by him.

(5) Every such certificate issued in pursuance of this section shall be issued free of charge.

(6) Subject to the provisions of this section the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of shares into stock shall extend and apply to the said ordinary stock.

22. Any transfer of original capital stock may be in multiples of one pound so long as thereby the holding of any stockholder of the Company is not less than or is not reduced below ten pounds nominal value of stock. Multiples of stock.

Notice of this section shall be endorsed on all stock certificates.

23. The Company may raise additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue at their option of new ordinary stock or preference stock or wholly or partially by one or more of those modes respectively but such stock shall not vest in the person accepting the same Power to Company to raise additional capital.

A.D. 1901. unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof.

Profits of
Company
limited.

24. Except as by this Act provided the profits of the Company to be divided among the stockholders in any year shall not exceed the following rate of dividend (which is in this Act referred to as "the standard rate") (that is to say) On the original capital the rate of five pounds in respect of every one hundred pounds of such capital and on the additional capital the rate of five pounds in respect of every one hundred pounds actually paid up of such capital.

New stock
to be offered
by auction
or tender.

25. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserved price put upon any such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner And provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of stock shall be accepted in preference.

Purchase
money of
capital sold
to be paid
within three
months.

26. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be
given as to
sale of stock.

27. The intention to sell any such stock by auction or by tender shall be communicated in writing to the clerk of the urban district council of Omagh the clerk of the rural district council of Omagh and the secretary of the committee of the

Dublin Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act. A.D. 1901.

28. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to and in accordance with the foregoing provisions of this Act with respect to the sale of stock and the reserve put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold shall be again offered to the holders of ordinary stock at the last-mentioned reserved price and so from time to time until the whole of such stock is sold.

Stock not sold by auction or tender to be offered to stockholders.

29. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in calculating the amount which the Company may raise by borrowing or in calculating the amount of the insurance fund the premium received from the sale of stock by auction or tender as herein-before provided may be reckoned as part of the paid-up capital.

Application of premium arising on issue of stock.

30. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the ordinary capital at the authorised rate the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed

If profits exceed amount limited excess may be invested and form an insurance fund.

A.D. 1901. amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

Application
of excess of
profits over
authorised
rate of
dividend.

31. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to
create a
reserve fund
out of divi-
dends in
excess of
standard
rate of
dividend
and appli-
cation
thereof.

32. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company which would otherwise be applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Receipt of
guardian &c.
to be sufficient
discharge.

33. If any money be payable under this Act to a shareholder stockholder mortgagee or debenture stockholder being a minor

idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. A.D. 1901.

34. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the capital of the Company at the time actually issued by stock but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

35. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

For appointment of a receiver.

36. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any such subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the same were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be stated in all mortgages and certificates of debenture stock.

Debenture stock.

37. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect

Priority of mortgages over other debts.

A.D. 1901. any claim against the Company or their property in respect of any rent or sum reserved by or payable under any lease already made to the existing Company or any trustee or trustees for the same or hereafter to be made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock nor shall anything in this section contained affect any claim in respect of land taken by the Company for the purposes of their undertaking.

Application
of moneys.

38. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

Ordinary
meetings.

39. The first ordinary meeting of the Company shall be held within three months next after the passing of this Act and the future ordinary meetings of the Company shall be held in the month of October in every year or at such other time as shall be appointed for that purpose at a general meeting of the Company.

Quorum of
meetings of
Company.

40. The quorum of all general meetings of the Company whether ordinary or extraordinary shall be ten shareholders present in person or by proxy holding not less in the aggregate than one thousand pounds in the ordinary capital of the Company.

Number of
directors.

41. The number of directors shall be five but the Company may vary that number provided that the number be not less than four nor more than ten.

Qualification
of directors.

42. The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than one hundred and fifty pounds.

Quorum of
directors.

43. The quorum of a meeting of directors shall be five when the number of the directors exceeds seven and three when the number of directors does not exceed seven.

First
directors.

44. The directors of the existing company namely Hans Beresford Fleming Robert Hawkes Ellis William Robert Scott Michael Devlin and Thomas James McAdam shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

Election of
directors.

45. At the first ordinary meeting held after the passing of this Act the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or may elect directors to supply the place of those not continued in office or

A.D. 1901.

may subject to the provisions of this Act elect other directors in addition to the directors appointed by this Act the directors so appointed being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the provision herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in the manner provided by the same Act.

46. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract.

Directors
not to be
disqualified
&c.

47. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the standard rate.

Interim
dividend.

48. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district in which the Company's principal office is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of
transfer
books
previous to
declaring
interim
dividend.

49. The period to which the books of the Company shall be balanced shall be the thirtieth day of June in each year.

Books to be
balanced to
30th of June.

50. Subject to the provisions of this Act the Company may purchase and acquire by agreement and may hold the lands

Powers as
to construc-
tion and

A.D. 1901. described in the schedule to this Act and may on those lands maintain (with or without alteration) the existing gasworks thereon and erect and maintain additional and other gasworks and other works and apparatus and conveniences for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture and store coke tar pitch asphaltum ammoniacal liquor and all other products or residuals arising in or resulting from the manufacture of gas.

Power to purchase lands by agreement.

Gas not to be manufactured except on lands scheduled.

Power to supply gas fittings &c. for heating and other purposes.

Supply of gas for other than lighting purposes.

51. The Company may for the purposes of their undertaking purchase or take on lease and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of or connected with their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

52.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

53. The Company may supply gas for heating cooking motive power warming ventilating and other purposes and for the particular requirements of any trade industry manufacture or business on such terms and conditions in all respects as may

be agreed on between the Company and the persons to whom such supply shall be given. A.D. 1901.

54. The Company may contract with any local authority company or persons beyond the limits of this Act for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon. Provided that no such supply shall be given in any district without the consent in writing of the local authority of and of any company or person supplying gas under Parliamentary powers in such district.

Company may contract with local authority &c. for supply in bulk.

55. The Company may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply.

Power to lay pipes in streets not dedicated to public use.

56. The standard price to be charged by the Company for gas supplied by them shall be four shillings and sixpence per thousand cubic feet which price is in this Act referred to as "the standard price" Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows:—

Dividend dependent on price charged.

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been exceeded be reduced below the standard rate by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds.

A.D. 1901.
Discounts.

57. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case twopence per thousand cubic feet of gas supplied. Provided that notice of the effect of this enactment shall be endorsed on every demand note for gas rent. Provided also that such discounts or rebates shall be of equal amount under like circumstances to all consumers.

Pressure of
gas.

58. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to the testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

No penalty
in case of
unavoidable
cause.

59. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Quality of
gas.

60. The prescribed number of candles shall be fifteen.

Testing
place.

61. Within six months from the passing of this Act a testing place shall be provided at the works of the Company.

Burner.

62. The prescribed burner shall be Sugg's London argand burner number one with a six-inch by one-and-three-quarter-inch glass chimney but if at any time and so long as the gas flame rises above the top of that glass a six-inch by two-inch chimney shall be used or such other burner as shall for the time being be approved by the Board of Trade.

63. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

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Power to
refuse to
supply per-
sons in debt
for other
property.

64. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Provided that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Gas con-
sumers to
give notice
to Company
before
removing.

65. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in like manner as gas rents are recoverable by the Company.

Period of
error in
defective
meters.

66. The Company may erect and maintain dwelling-houses for persons in their employ upon the lands for the time being belonging to or leased by the Company.

Dwelling-
houses for
persons in
Company's
employ.

67.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board for Ireland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds

A.D. 1901. — in respect of every such house which penalty shall be recoverable by the said Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Power to
apply for a
Provisional
Order to
supply
electricity.

68. The Company if they think fit may under the provisions of the Electric Lighting Act 1882 make application for a Provisional Order or licence to produce and supply electrical energy for public and private purposes and may apply their funds for the purpose of such application And the Company may for the purposes of any such Provisional Order upon the lands described in the schedule to this Act or any part thereof erect maintain and use a station for generating electrical energy.

Copy of Act
to be regis-
tered.

69. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director and manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Power to
council to
purchase
undertaking.

70.—(1) If the Omagh Urban District Council (hereinafter called "the council") shall introduce a Bill into Parliament and bona fide promote the same within any of the next three

available sessions of Parliament to empower them to purchase the undertaking of the Company the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit And if the Council obtain an Act authorising such purchase and give a written notice of their intention to purchase within six months of the passing of such Act the Company shall at the expiration of such six months sell and transfer and the Council shall purchase and acquire the undertaking property rights powers and privileges of the Company subject to any existing mortgages obligations and liabilities of the undertaking.

(2) Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Company Provided that in addition to the sum to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company the actual costs of obtaining this Act as taxed by the proper taxing officer but the arbitrator shall not in assessing the sum to be paid by the council to the Company have regard to the fact that the Company is incorporated by this Act.

71. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Costs of
Act.

A.D. 1901.

The SCHEDULE referred to in the foregoing Act.

**LANDS ON WHICH THE COMPANY MAY ERECT AND MAINTAIN WORKS
AND MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE
GAS.**

Four portions of the townland of Dergmoney called in the General Tenement Valuation Dergmoney Lower part of which is known by the sub-denomination of Irishtown held by leases dated respectively the 17th January 1852 20th February 1860 19th February 1890 and 24th November 1898 which lands are at present in the occupation of the existing company and situate in the parish of Drumragh Urban District of Omagh Barony of East Omagh and county of Tyrone lying in the angle at the junction of the Dublin Road and the old Dublin Road and bounded on the east by a field in the possession of Lieut.-Col. R. H. Ellis on the south and south-west by the premises of the Presbyterian Manse and the Tyrone Shirt Manufacturing Company Limited and by the said Dublin Road and on the north and north-west by the said old Dublin Road.

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